

Matilda Priess and Douglas Priess vs Simi Valley Senior Living Center, LLC, et al.
2025CUPP056612

Wednesday – August 19, 2026

Judge Trentacosta; Dept. 42

Tentative

Motion: Defendant's Motion to Strike Portions of First Amended Complaint (*Opposed*)

Tentative: The Court will reach the merits of Defendant Pegasus Home Health Care, Inc.'s Motion in spite of Plaintiff's objection, finding the Motion timely filed and, in any event, Plaintiff suffers no prejudice. The Court's tentative is to GRANT the Motion to strike as requested.

It would be unfair and against public policy to find the motion untimely due to an inconsistently applied ministerial rule. Also, the Court has discretion to strike improper matters at any time.
CCP §436

Defendant successfully argues that Plaintiff has not properly pled facts to support a claim for punitive damages or for attorney's fees under Welfare and Institutions Code section 15657, which requires that the defendant be "guilty of recklessness, oppression, fraud, or malice."

"The Elder Abuse Act makes certain enhanced remedies available to a plaintiff who proves abuse of an elder, i.e., a 'person residing in this state, 65 years of age or older.' (Welf. & Inst. Code, § 15610.27.) In particular, a plaintiff who proves 'by clear and convincing evidence' both that a defendant is liable for physical abuse, neglect or financial abuse (as these terms are defined in the Act) and that the defendant is guilty of 'recklessness, oppression, fraud, or malice' in the commission of such abuse may recover attorney fees and costs. (*Id.*, § 15657, subd. (a).)" (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 404.)

The Elder Abuse Act does not apply to simple or gross negligence by health care providers and in order to obtain the enhanced remedies of section 15657, a plaintiff must demonstrate by clear and convincing evidence that defendant is guilty of something more than negligence; he or she must show reckless, oppressive, fraudulent, or malicious conduct. "'Recklessness' refers to a subjective state of culpability greater than simple negligence, which has been described as a 'deliberate disregard' of the 'high degree of probability' that an injury will occur [citations]. Recklessness, unlike negligence, involves more than 'inadvertence, incompetence, unskillfulness, or a failure to take precautions' but rather rises to the level of a 'conscious choice of a course of action ... with knowledge of the serious danger to others involved in it.' [Citation.]" (*Worsham v. O'Connor Hospital* (2014) 226 Cal.App.4th 331, 336-337.)

"In order to obtain the Act's heightened remedies, a plaintiff must allege conduct essentially equivalent to conduct that would support recovery of punitive damages. (Compare Welf. & Inst. Code, § 15657 [requiring "clear and convincing evidence that a defendant is liable for" elder abuse and "has been guilty of recklessness, oppression, fraud, or malice in the commission of the abuse"] with Civ. Code, § 3294, subd. (a) [requiring "clear and convincing evidence" that the defendant has been guilty of oppression, fraud, or malice].)" (*Covenant Care, Inc. v. Superior Ct.* (2004) 32 Cal. 4th 771, 789.)

In *G. D. Searle & Co. v. Superior Ct.* (Ct. App. 1975) 49 Cal. App. 3d 22, the court stated that “We suggest *conscious disregard of safety* as an appropriate description of the *animus malus* which may justify an exemplary damage award when nondeliberate injury is alleged.” (*G. D. Searle & Co. v. Superior Ct.* (Ct. App. 1975) 49 Cal. App. 3d 22, 32.)

Here, the allegations regarding moving-party Pegasus are too general in nature and do not demonstrate a willful or conscious disregard; nor does the FAC allege that the conduct of Pegasus’ employees rises to the level of malice or acted with a conscious disregard of Decedent’s safety. The allegations of acts of omission are not asserted with any particularity. As in *G.D. Searle*, the allegations of wrongful, knowing and willful conduct by Pegasus are conclusory and require the Court to imply that by being aware of Decedent’s health condition that their employees then acted with malice in failing to meet Decedent’s needs. Decedent was only cared for by Pegasus for a few months and none of the allegations rise to the level of recklessness based on the allegations currently asserted in the FAC. The allegations are not pled with specificity and nothing takes the actions of Pegasus outside of negligence. The closest Plaintiff comes is the assertion that evaluations ceased after August 21, 2025, but then about two weeks later she was hospitalized. While Plaintiff argues that a “voluminous number of errors within a short span of time” were alleged, that is not the case. The FAC’s allegations do not allow a reasonable inference of recklessness.

Plaintiff fails to address several of the other issues raised by Defendant, including that the allegations in support of enhanced remedies are directed against all Defendants, not just Pegasus. The group pleading is insufficient. Additionally, Plaintiff makes no effort to point to any allegations in the FAC alleging facts showing an officer, director, or managing agent’s advance knowledge, authorization, or ratification of the wrongful conduct, as required under Civil Code section 3294, subdivision (b), and, by extension, by Welfare and Institutions Code section 15657, subdivision (c). There are no allegations in the complaint identifying any individual and the allegations are entirely boilerplate. FAC, ¶¶69, 75.

The allegations that Defendant neglected Decedent during her stay by failing to provide adequate medical care for her wounds do not support a finding of recklessness, oppression, fraud, or malice. The Motion to strike punitive damages and enhanced remedies is GRANTED. Leave to amend is appropriate as this was the first pleading challenge before the Court.

Any amended complaint to be filed within 20 days.